

Amit Kumar Samaiya v. President (Prabandhak Nideshak) Discom Committee KESCO

High Court of Judicature at Allahabad · Division Bench · 8 November 2013 · Writ-C No. 61181 of 2013 · **Writ disposed of; pending Supply Code appeal to be decided as early as possible.**

HEADNOTE

Mandamus to decide a recently filed Electricity Supply Code appeal out of turn was refused, the appeal having been filed only in September 2013. The Division Bench nonetheless directed the Discom Committee to hear and decide the appeal as early as possible and disposed of the writ without examining the underlying electricity dispute.

FACTUAL SUMMARY

The petitioner, a KESCO consumer, had filed an appeal under section 18(v) of the Electricity Supply Code before the President (Prabandhak Nideshak) of the Discom Committee. While that appeal remained pending, he petitioned the Allahabad High Court for a writ of mandamus directing the appellate authority to decide it at an early date. The Court was informed that the appeal had been filed only in September 2013.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::18(v)

expeditious disposal of pending Supply Code appeal

HOLDING

Where a consumer's appeal under section 18(v) of the Electricity Supply Code is pending before the Discom Committee and was filed only recently, the High Court will not issue mandamus to decide that appeal out of turn; it may still direct that the appeal be heard and decided as early as possible. ¶ 2-3

FLAG clause cited as section 18(v); numbering does not match the UPESC 2005 clause scheme

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PENDING SUPPLY CODE APPEAL

Left to the Discom Committee; the High Court did not examine the underlying electricity dispute. ¶ 1-4